English (United States)

Updated: January 16, 2026

Europe Terms of Use

(Previous version)

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These Terms of Use ("Terms") apply to your use of ChatGPT, DALL·E, and OpenAI's other services for individuals, along with any associated software applications, technology and websites ("Services"), including personal, non-commercial use of our Services by consumers. You form a contract with us when you confirm that you accept these Terms or when you otherwise use the Services.

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Depending on the specific Service or features you use, additional Service-specific terms and policies may apply to your use of our Services. The key ones to be aware of, and which form part of these Terms, are described below:

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Registration. You must provide accurate and complete information to register for an account to use our Services. You may not share your account credentials or make your account available to anyone else and are responsible for all activities that occur under your account. If you create an account or use the Services on behalf of another person or entity, you must have the authority to accept these Terms on their behalf.

Using our Services

What you can do. Subject to your compliance with these Terms, you may access and use our Services. In using our Services, you must comply with all applicable laws as well as the Service-specific terms and policies listed above.

What you cannot do. You may not use our Services for any illegal, harmful, or abusive activity. For example, you are prohibited from:

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- Modifying, copying, leasing, selling or distributing any of our Services.
- Attempting to or assisting anyone to reverse engineer, decompile or discover the source code or underlying components of our Services, including our models, algorithms, or systems (except to the extent this restriction is prohibited by applicable law).
- Automatically or programmatically extracting data or Output (defined below).
- Representing that Output was human-generated when it was not.
- Interfering with or disrupting our Services, including circumventing any rate limits or restrictions or bypassing any protective measures or safety mitigations we put on our Services.
- Using Output to develop models that compete with OpenAI.

Software. Our Services may allow you to download software, such as mobile applications, which may update automatically to ensure you're using the latest version. Our software may include open source software that is governed by its own licences that we've made available to you.

Corporate domains. If you create an account using an email address owned by an organisation (for example, your employer), that account may be added to the organisation's business account with us, in which case we will provide notice to you so

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services, (“Third Party Services”) and some parts of our Services, like our browse feature, may include output from those services (“Third Party Output”). Third Party Services and Third Party Output are subject to their own terms, and we are not responsible for them.

Feedback. We appreciate your feedback about our Services, but you agree that we may use it to provide, maintain, develop, and improve our Services, without compensation to you.

Content

Your content. You may provide input to the Services (“**Input**”), and receive output from the Services based on the Input (“**Output**”). Input and Output are collectively “**Content**”. You are responsible for Content, including ensuring that it does not violate any applicable law or these Terms. You represent and warrant that you have all rights, licences, and permissions needed to provide Input to our Services.

Ownership of content. As between you and OpenAI, and to the extent permitted by applicable law, you (a) retain your ownership rights in Input and (b) own the Output. We hereby assign to you all our right, title, and interest, if any, in and to Output.

Similarity of content. Due to the nature of our Services and artificial intelligence generally, Output may not be unique and other users may receive similar output from our Services. Our assignment above does not extend to other users’ output or any

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address content that violates our Terms, including our Usage Policies. If we become aware of violations, we may remove or restrict content, limit your access to features, or suspend or terminate your account.For more details on our content moderation process and complaint procedures, see our Transparency & Content Moderation page.

Opt out. If you do not want us to use your Content to train our models, you have the option to opt out by updating your account settings. Further information can be found in this article. Please note that in some cases this may limit the ability of our Services to better address your specific use case.

Accuracy. Artificial intelligence and machine learning are rapidly evolving fields of study. We are constantly working to improve our Services to make them more accurate, reliable, safe, and beneficial. Given the probabilistic nature of machine learning, use of our Services may in some situations result in Output that does not accurately reflect real people, places, or facts.

When you use our Services you understand and agree:

- Output may not always be accurate. You should not rely on Output from our Services as a sole source of truth or factual information, or as a substitute for professional advice.
- You must evaluate Output for accuracy and appropriateness for your use case, including using human review as appropriate, before using or sharing Output from the Services.

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advance so you can export your Content or your data from the Services, unless it is not appropriate for us to do so, we reasonably believe that continued access to your account will cause damage to OpenAI or anyone else, or we are legally prohibited from doing so.

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- caused by our breach of these Terms or
- reasonably foreseeable at the time of entering into these Terms.

We do not take responsibility for loss or damage caused by events beyond our reasonable control. We do not exclude or limit our liability to you in any way where it would be unlawful for us to do so. You still have the full protections of the laws applicable to you.

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Concerns. If we have a dispute, we would first like to understand and try to address your concerns before any formal legal action. To share your concerns you can contact us through this form.

Court. If we cannot resolve our dispute, you or we can go to your local courts.

EEA consumer alternative dispute resolution. If you reside in the EEA, you can also raise the dispute with an alternative dispute resolution body via the European Commission's Online Dispute Resolution (ODR) Platform, which you can access at https://ec.europa.eu/consumers/odr.

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If you believe that your intellectual property rights have been infringed, please send notice to the address below or fill out this form. We may delete or disable content alleged to be infringing and may terminate accounts of repeat infringers.

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1455 3rd Street
San Francisco, CA 94158
Attn: General Counsel / Copyright Agent

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Delay in enforcing these Terms. If we or you delay enforcing a provision of these Terms, either of us can still enforce it later, and it will not prevent us or you from taking steps against the other at a later date. If any part of these Terms is determined to be invalid or unenforceable, it will not affect the enforceability of any other part of these Terms.

Trade controls. You must comply with all applicable trade laws, including sanctions and export control laws. Our Services may not be used in or for the benefit of, or exported or re-exported to (a) any U.S. embargoed country or territory or (b) any individual or entity with whom dealings are prohibited or restricted under applicable trade laws. Our Services may not be used for any end use prohibited by applicable trade laws, and your Input may not include material or information that requires a government licence for release or export.

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